

Review

In 2017, the department selected GHD Pty Ltd to undertake a study of Australian industry quality assurance (QA) schemes and how they support, or could potentially support, regulation controlling the risks of agricultural and veterinary (agvet) chemical use, and to understand the extent to which such schemes complement various regulatory requirements imposed by state and territory jurisdictions.

The consultant was required to review a selection of industry-based QA schemes in Australian agriculture in order to understand the range of elements related to managing risks associated with the use of agvet chemical products.

GHD consulted a range of manufacturing and user representative groups, and selected state governments during this project.

Report findings

The GHD report found that QA scheme design varies widely across Australia, from systems tailored to highly-regulated industries to those catering for industries operating on codes of practice and no formal compliance systems. Regardless of the particular scheme, compliance with agvet chemical control of use regulation was found to be a minimum scheme requirement. Key characteristics of the schemes were analysed for their potential to support the current regulatory framework.

The report notes that regulatory flexibility was also a strength in that a scheme's standards can be quickly updated as necessary (providing there were no legislative or regulatory impediments) to meet changing market requirements.

The report also reviewed foreign jurisdictions currently recognising QA scheme certification as compliant with their regulatory requirements, and how this formal recognition helps reduce duplication and create cost savings. It notes that Australian jurisdictions vary widely in the extent of their recognition, from memoranda of understanding with QA scheme owners, to the absence of any formal recognition.

Conclusions

The report findings provide useful and contemporary information that will assist ongoing government consideration of a sound and harmonised approach to the control of agvet chemical use across Australia. Harmonisation could include greater recognition of the role of QA schemes within the regulatory framework for their capacity to improve efficiency, effectiveness and cost.

One of the outcomes of the study was to reveal that all the QA schemes reviewed included modules for aspects of agvet chemical use such as training and record-keeping. However, those schemes also varied in their requirements with respect to auditing, product testing (for residues) and off-label chemical use.

It was noted by GHD that regardless of the particular scheme, all scheme participants were required to adhere to state and territory control of use regulations at a minimum.

Similarly, jurisdictions were found to vary in the extent to which they recognised QA schemes as compliant with control of use requirements. State-level recognition ranges from formal memoranda of agreement (or other forms of agreement) struck between jurisdictions and QA scheme owners to no formal recognition whatsoever. Where formal agreements are in place, these involve individual jurisdictions and are not recognised by other jurisdictions.

Control of use requirements in Australia are currently complicated by the differences in regulatory requirements between jurisdictions and this appears to impede national recognition of what are ostensibly national schemes. Although this issue is being tackled by Australian governments through ongoing national reform processes (and currently include record-keeping and training requirements) it is unclear when such policies will be implemented. In its study, GHD also identified areas that could enhance co-regulation opportunities. These and other findings are available in the final report.

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